Cato Networks Website and Application Terms & Conditions (T&C)

These Terms and Conditions are a legal contract between Cato Networks and the User (as defined herein).

A. General

1. The Cato Networks Online VPN User Portal with the URL https://myvpn.catonetworks.com (hereinafter: the "**Website**" or "**VPN User Portal**") and this Virtual Private Network Application (the "**VPN App**") are owned by Cato Networks Ltd. and its affiliated companies (the "**Company**"). **All provisions in these T&C apply to the VPN User Portal the VPN App and the VPN Services made available via the VPN User Portal and VPN App.**

2. The purpose of these T&C is to define the relationship between the Company and the Users (hereinafter: "**User**" or "**Users**" or "**You**"). Any access of and/or use of the Online VPN User Portal and/or VPN App (as applicable) is subject to the conditions set forth in these T&C. Upon accessing the Online VPN User Portal and/or VPN App, Users are held to have consented and confirmed the conditions of these T&C as a precondition for using the Online VPN User Portal and/or VPN App (as applicable).

3. **Please read these T&C carefully prior to taking any action on the Online VPN User Portal and/or VPN App, as it constitutes a binding agreement between You and the Company. By using the Online VPN User Portal and/or VPN App You are acknowledging that You have read and understood these T&C and that You consent to these T&C without reservation.**

4. By accessing this Online VPN User Portal and/or VPN App, You represent that You are over the age of 13, as the Online VPN User Portal and/or VPN App is not intended for children under 13.

5. The Company reserves its right to change these T&C from time to time, and the current version of the T&C on the Company's Online VPN User Portal is the version that is binding upon the Company and the User. In any event of discrepancy or contradiction between the provisions of the T&C and other publications on behalf of the Company, the provisions of the T&C shall take precedent.

6. The Company will use reasonable efforts to include up-to-date and accurate information in this Website (the "**Content**"). However, the Company cannot and does not warrant that the Content available on the Website is accurate, complete, reliable, current, or error-free. The Company reserves the right to make changes in or to the Content, or any part thereof, in its sole judgment, without the requirement of giving any notice prior to or after making such changes to the Content. Your use of the Content, or any part thereof, is made solely at the Your own risk and responsibility.

7. The User agrees not to use or launch any automated system, including, without limitation, "offline readers", "robots", or "spiders" that access the Online VPN User Portal or VPN App in a manner that sends more request messages to the Company servers than a human using a

conventional on-line browser reasonably could.

8. The Company has the right to terminate any User's access to the Online VPN User Portal and/or VPN App in its sole discretion, immediately and without cause.

9. The Website may contain links to third party websites that are not owned or controlled by the Website or the Company, and neither the Website nor the Company has control over those websites, and assumes no responsibility for the content, privacy policies, or practices of any third party websites. In addition, the Company will not and cannot censor or edit the content of any third-party site. By using the Online VPN User Portal and/or VPN App, You expressly release the Company from any and all liability arising from Your use of any third-party website. Accordingly, we encourage You to be aware when You have left the Website and to read the terms and conditions and privacy policy of each other website that You visit.

   As a result of your use of the Online VPN User Portal and/or VPN App your data will be processed and meta data will collected for the purpose of providing the Services (as defined below) as well as providing data analytics to the owner of the Cato Network Account being accessed via the Online VPN User Portal and/or VPN App.

10. The Solutions contain software including source code that Cato has licensed from third parties. Customer may not use such third-party software separate from the Solutions and the use of such third-party software is subject to the terms and conditions of this Agreement. Customer agrees that such third parties retain their respective rights, title and interest (including all Intellectual Property Rights) in and to such third-party software.

B. Privacy

All access to and use of this Online VPN User Portal and/or VPN App, as well as the services available through the Online VPN User Portal and/or VPN App and our subsidiaries or affiliated companies (collectively, the "**Services**") shall be governed by Cato's Data Processing and Privacy Agreement available at: http://www.catonetworks.com/cato-networks- data-processing-and-privacy-agreement and Cato's Privacy Policy available at: https://www.catonetworks.com/privacypolicy. References to the "MSA" in Cato's Data Processing and Privacy Agreement or Privacy Policy shall be interpreted as referring to these T&C.

1. CAN SPAM Act

1.1 The CAN-SPAM Act is a law that sets the rules for commercial email, establishes requirements for commercial messages, gives recipients the right to have emails stopped from being sent to them, and spells out tough penalties for violations.

1.2 We collect your email address in order to:

(a) Send information, respond to inquiries, and/or other requests or questions

(b) Process orders and to send information and updates pertaining to orders.

(c) Send you additional information related to your product and/or service

(d) Market to our mailing list or continue to send emails to our clients after the original transaction has occurred.

1.3 To be in accordance with CANSPAM, we agree to the following:

(a) Not use false or misleading subjects or email addresses.

(b) Identify the message as an advertisement in some reasonable way.

(c) Include the physical address of our business or site headquarters.

(d) Monitor third-party email marketing services for compliance, if one is used.

(e) Honor opt-out/unsubscribe requests quickly.

(f) Allow users to unsubscribe by using the link at the bottom of each email.

2. Third-party Providers

2.1 In general, the third-party providers used by us will only collect, use and disclose your information to the extent necessary to allow them to perform the services they provide to us. For these providers, we recommend that you read their privacy policies so you can understand the manner in which your personal information will be handled by these providers. In particular, remember that certain providers may be located in or have facilities that are located a different jurisdiction than either you or us. So if you elect to proceed with a transaction that involves the services of a third-party service provider, then your information may become subject to the laws of the jurisdiction(s) in which that service provider or its facilities are located.

2.2 Once you leave our Online VPN User Portal and/or VPN App or are redirected to a third-party website or application, you are no longer governed by this Privacy Policy or our T&C.

3. Third-party Links

Occasionally, at our discretion, we may include or offer third-party products or Services on our Online VPN User Portal

and/or VPN App. These third-party sites have separate and independent privacy policies. We therefore have no responsibility or liability for the content and activities of these linked sites. Nonetheless, we seek to protect the integrity of our site and welcome any feedback about these sites.

4. Age of Consent

By using this site, you represent that you are at least the age of majority in your state, province or country of residence, or that you are the age of majority in your state, province or country of residence and you have given us your consent to allow any of your minor dependents to use this site.

C. <u>Website IP; Access to and Use of Cato Services</u>

1. All intellectual property rights in the Website, including patents, copyright, designs, trademarks, trade dress, methods, and trade secrets, are the exclusive property of the Company and the Website. Without derogating from the generality of the aforementioned, the Company and the Website have intellectual property rights in all pages, content and information published on the Website, in the methods of sale, the databases, the Website's graphic design and any other detail related to its operation.

2. Use of the Website and/or App does not confer to the Users any license or other right to use the intellectual property of the Company and/or any third party; and access to the Services via the Website and/or App are governed by the Company's **Master Services Agreement**, substantially in the form available at https://www.catonetworks.com/msa/ which must be entered into by the Company and User prior to any use of the Services by User.

D. LIMITATIONS OF LIABILITY

NEITHER CATO NOR CATO'S AFFILIATES, LICENSORS, SUPPLIERS, REPRESENTATIVES OR DISTRIBUTORS OR PARTNERS OR SHAREHOLDERS, MANAGERS, DIRECTORS, OFFICERS, AFFILIATES AND EMPLOYEES, RESPECTIVELY, SHALL BE LIABLE UNDER THESE T&C UNDER ANY LEGAL THEORY WHETHER IN CONTRACT, TORT OR OTHERWISE, FOR ANY INCIDENTAL, CONSEQUENTIAL, INDIRECT, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING DAMAGES FOR LOSS OF BUSINESS PROFITS, BUSINESS INTERRUPTION, LOSS OF INFORMATION, LOSS OF DATA INCLUDING ARISING OUT OF THE USE OF OR INABILITY TO USE THE SOLUTION OR OTHER PECUNIARY LOSS EVEN IF THE OTHER PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

THE SOLE LIABILITY OF CATO, IT'S AFFILIATE'S, AND LICENSORS, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY IN TORT, BY STATUTE OR OTHERWISE, FOR ANY AND ALL CLAIMS IN ANY MANNER RELATED TO THESE T&C, WILL BE THE PAYMENT OF DIRECT DAMAGES NOT TO EXCEED IN THE AGGREGATE OF $1000.

E. DISCLAIMER OF WARRANTY

CATO MAKES NO WARRANTY REGARDING THE WEBSITE OR VPN APP AND HEREBY DISCLAIMS ALL WARRANTIES, EXPRESS AND IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF FITNESS FOR A PARTICULAR PURPOSE, MERCHANTABILITY, INFORMATIONAL CONTENT, SYSTEMS INTEGRATION, INTERFERENCE WITH ENJOYMENT OR OTHERWISE. CATO DOES NOT WARRANT THAT (I) THE USE OF WEBSITE OR VPN APP WILL BE UNINTERRUPTED OR ERROR-FREE, OR (II) THE THE WEBSITE OR VPN APP USE WILL PERFORM IN ACCORDANCE WITH YOUR EXPECTATIONS OR ACHIEVE YOUR DESIRED RESULT.

NEITHER THE WEBSITE NOR VPN APP USE IS NOT DESIGNED FOR USE WITH CRITICAL OR LIFE SAVING INFRASTRUCTURES, SYSTEMS THAT CONTAIN OR PROTECT AGAINST DANGEROUS OR HAZARDOUS MATERIALS OR FORCES, NATIONAL SECURITY PURPOSES OR NUCLEAR, CHEMICAL, OR BIOLOGICAL WEAPONS.

F. Law and jurisdiction

The laws of the State of New York shall apply to Your use of the Website, the VPN App, or these T&C, without regard to its conflict of laws provisions. The courts located in New York, NY shall have exclusive jurisdiction and venue to adjudicate any valid dispute arising out of these T&C and both parties hereby irrevocably submit to the exclusive jurisdiction of those courts. THE PARTIES

SPECIFICALLY WAIVE ANY RIGHT TO TRIAL BY JURY IN ANY COURT WITH RESPECT TO ANY CONTRACTUAL, TORTIOUS, OR STATUTORY CLAIM, COUNTERCLAIM, OR CROSS-CLAIM AGAINST THE OTHER ARISING OUT OF OR CONNECTED IN ANY WAY TO THIS AGREEMENT.

G. Contact

For any question and/or problem relating to the Website, please contact the Website's service center by email: https://www.catonetworks.com/support/.